

HOUSE No. 5410

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES

REPORT
of the
SPECIAL JOINT
COMMITTEE
on
INITIATIVE PETITIONS
on the
INITIATIVE PETITION
of
JOHN A. LIPPITT
AND OTHERS
FOR THE PASSAGE OF AN ACT
TO REFORM AND REGULATE
LEGISLATIVE STIPENDS
(see House, No. 5010)

May 4, 2026.

MAJORITY REPORT.

A majority of the Special Joint Committee on Initiative Petitions

Article 48 of the Amendments to the Constitution of the Commonwealth allows voters to propose laws or constitutional amendments through initiative petitions, commonly called ballot questions. After gathering the required signatures and submitting certified signatures to the Secretary of the Commonwealth, a petition is formally presented to the Legislature for consideration. It is then referred to a committee, in this case, the Special Joint Committee on Initiative Petitions.

Under Article 48, the committee must report to the Legislature on each petition before the first Wednesday in May. Unlike the standard legislative process, the Legislature may only approve or reject an initiative petition as submitted, without making changes.

The Committee held a hearing on Initiative Petition 25-37, House 5010, *Initiative Petition for an Act to Reform and Regulate Legislative Stipends*, on March 17, 2026. The Special Joint Committee on Initiative Petitions held public hearings throughout March 2026 to gather testimony and inform its review. The Committee considered input from subject matter experts, proponents and opponents of the Petition, as well as members of the public. The full hearing and supporting documentation is available to the public at malegislature.gov/Events/Hearings/Detail/5589.

During the Committee's consideration of this Petition, the Justices of the Massachusetts Supreme Judicial Court (SJC) issued an advisory opinion on the Petition on April 27, 2026. The advisory opinion concluded that the legislative stipends ballot proposal is unconstitutional. The Justices of the SJC wrote that the ballot question regulates legislative procedures rather than establishing a permissible law, which is outside the scope of the initiative petition process. The Justices concluded that the Petition is "not in proper form for submission to the people".

Given the SJC's finding of unconstitutionality, on May 4, 2026, a majority of the Special Joint Committee on Initiative Petitions voted to recommend that the General Court **take no action** on Initiative Petition 25-37, House 5010, *Initiative Petition for an Act to Reform and Regulate Legislative Stipends*.

Senators.

Cindy F. Friedman
Brendan P. Crighton
Paul R. Feeney
Barry R. Finegold

Representatives.

Alice Hanlon Peisch
Kate Hogan
Frank A. Moran
Michael S. Day
David T. Vieira